



File No.: EXP202211747

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: The Spanish Agency for Data Protection became aware through a letter sent by the Government of the Canary Islands of certain facts that could violate data protection legislation. In said letter, dated September 23, 2022, upon entry into the registry of this Agency, a complaint filed by Mr. A.A.A. (hereinafter the complainant) is forwarded.

The complainant states that, when going to stay at the establishment of the defendant, OMEGA RESORT, S.L. with NIF B35609031 (hereinafter, OMEGA RESORT), on August 25, 2022, at the time of check-in, they were asked for their identification document and it was photocopied, despite their opposition and without being informed of the processing to be carried out.

Along with the notification, the complaint form is attached.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to OMEGA RESORT for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on November 7, 2022, as evidenced by the acknowledgment of receipt in the file.

On December 5, 2022, a response letter was received by this Agency indicating:

Regarding "the technical reports and recommendations prepared by the Data Protection Officer or by the security officer," OMEGA RESORT states that it has the advice of a leading company in the sector. It also attaches the following documents:

- Risk analysis, in accordance with the provisions of Articles 25 and 32 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data.
- Advanced risk calculation, detailing the company's assets in a particularized manner.
- Analysis of the need for an impact assessment, in accordance with Article 35 of the GDPR.
- Security manual.

In relation to the facts that motivated the complaint filed by the complainant, OMEGA RESORT states that it provided an adequate response to the complainant at all times. OMEGA RESORT states in this letter that the complainant "acknowledges that they were informed at the time their identification document was collected, which is mandatory under Organic Law 4/2015, of March 30, on the protection of citizen security for hospitality establishments."

Furthermore, OMEGA RESORT states that the complainant was informed through a threefold approach, which would be:

- Through the informative clauses made available to guests where they would be duly informed of the aspects detailed in Article 13 of the GDPR and Articles 11 of the LOPD and RGDD.
- Through a sign displayed at the reception, of which a photograph is attached.
- Verbally, when they impeded the presentation of their identification document.

THIRD: On December 23, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, the entity OMEGA RESORT, S.L. is an autonomous type company, established in 2000, with a business volume of ***AMOUNT.1 euros in 2021.

FIFTH: On July 10, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the defendant, in accordance with the provisions of Articles 63 and 64

of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), OMEGA RESORT submitted a written statement of allegations in which, in summary, it stated:

1.- Total absence of infringement.

OMEGA RESORT states that at no time would they have violated Article 5.1.c) of the GDPR as they did not make any photocopy of the ID card or passport or official identification document belonging to the complainant. They add that

3/9

only the identity document number, type of document, date of issuance, first and second surname, name, sex, date of birth, country of nationality, and date of entry would have been collected, as required in the model for the entry report of travelers established by Order INT/1922/2003, of July 3, regarding registration books and entry reports of travelers in hospitality establishments and other similar entities.

It also states that oral information was provided to the claimant, and that the establishment has the informative clauses made available to customers, where they are duly informed of the aspects of Article 13 of the GDPR and Article 11 of the LOPDGDD.

2.- In a subsidiary manner, they allege nullity of the sanctioning procedure for causing defenselessness.

OMEGA RESORT claims the existence of defenselessness due to the failure to provide the text of the claimant's complaint, translated into Spanish, in consideration of the right to defense protected by Article 24.1 of the CE.

To this end, OMEGA RESORT cites the ruling of the Third Chamber of the Supreme Court, dated June 30, 2011 (Rec. Casación No. 2682/2009, EDJ 2011/147438), which reflects the doctrine of the Constitutional Court regarding defenselessness in administrative procedures, and in which it would affirm the requirement that the implicated party enjoys a possibility of defense prior to the decision-making. By not having the opportunity to know the exact content of the claimant's complaint, OMEGA RESORT would have its exercise of the right to defense limited.

Thus, OMEGA RESORT considers that the initiation agreement would be null and void in accordance with the provisions of Article 47.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, which establishes that "the acts of Public Administrations are null and void in the following cases:

- a) Those that violate rights and freedoms subject to constitutional protection.
- b) Those issued by an organ manifestly incompetent due to the matter or territory.
- c) Those that have an impossible content.
- d) Those that constitute a criminal offense or are issued as a consequence thereof.
- e) Those issued completely disregarding the legally established procedure or the rules containing the essential regulations for the formation of the will of collegiate bodies.
- f) The express or presumed acts contrary to the legal system by which powers or rights are acquired when lacking the essential requirements for their acquisition.
- g) Any other that is expressly established in a provision with the rank of law.

Administrative provisions that violate the Constitution, laws, or other higher-ranking administrative provisions, those regulating matters reserved for the Law, and those establishing the retroactivity of unfavorable or restrictive sanctioning provisions of individual rights shall also be null and void."

OMEGA RESORT considers that, by not having the translation of the complaint, it would not have had the opportunity to defend itself, thus violating the accusatory principle. In this way, it asserts that the process unfolds without the guarantees of Article 24 CE, causing defenselessness, which would lead to an absolute nullity of the initiation agreement dated July 10, 2023.

3.- Violation of the principle of typicity.

OMEGA RESORT states that the accusation under Article 5.1.c) of the GDPR would violate the principle of typicity, which is linked to the principle of legal certainty of Article 9.3 CE, and Article 27 of Law 40/2015, of October 1, since a sanction is being proposed for an act that does not constitute an administrative infraction, infringing the rule "nullum crimen, nulla poena sine lege." In this regard, it cites the Judgment of the Constitutional Court of July 8, 1996 (Second Chamber), eighth legal foundation.

4.- Violation of the principle of presumption of innocence.

OMEGA RESORT states that if the procedure is not archived, a violation of the principle of presumption of innocence provided for in Article 24.2 CE would be occurring.

OMEGA RESORT considers this principle as complementary to the principle of culpability or responsibility, and states that such a violation occurs to the extent that it has been considered responsible without sufficient evidence being provided and practiced to specify the responsibility for the alleged violation committed.

It adds that the sanctioning administrative law applies, with nuances, but without exceptions, the guiding principles of criminal law, and the principle of presumption of innocence acquires full validity. It cites in this regard the ruling of the Constitutional Court 76/1990, of April 26, which considers that the right to the presumption of innocence entails "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence practiced, freely evaluated by the sanctioning body, must translate into an acquittal ruling." Furthermore, it considers that the presumption of innocence must govern without exceptions in the sanctioning legal system and must be respected in the imposition of any sanctions, as the exercise of ius puniendi is conditioned on the play of evidence and a contradictory procedure in which one's own positions can be defended.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/9

To this end, OMEGA RESORT once again cites the ruling of the Constitutional Court 76/1990, of April 26, as well as the ruling of the Supreme Court (STS 26/10/1998) stating that the right to the presumption of innocence "does not oppose the formation of judicial conviction in a process based on circumstantial evidence, but for this evidence to undermine said presumption, it must satisfy the following constitutional requirements: the indications must be fully proven - they cannot be mere suspicions - and it must explicitly state the reasoning by which, based on the proven indications, it has reached the conclusion that the accused committed the infringing conduct, since otherwise, neither the subsumption would be legally founded nor would there be a way to determine if the deductive process is arbitrary, irrational, or absurd, that is, if the right to the presumption of innocence has been violated by considering that the evidentiary activity can be understood as incriminating."

Consequently, OMEGA RESORT understands that imposing a sanction solely based on the complaint of the claiming party would constitute a violation of the principle of in dubio pro reo, or more specifically in this particular case the principle of in dubio pro actione, and of the principle of the presumption of innocence, to the extent that OMEGA RESORT states that no photocopy of the identity document of the claiming party was made.

5.- Violation of the principle of culpability requirement.

OMEGA RESORT considers that the principle of culpability or responsibility provided for in Article 28.1 of Law 40/2015, of October 1, which establishes that "only individuals and legal entities that are responsible for the acts constituting administrative infractions can be sanctioned," is violated.

OMEGA RESORT states that this principle is recognized by the Constitutional Court in some of its rulings, citing STC 219/1988, of November 22, which indicates that there is no responsibility without fault or objective responsibility in the ius puniendi and the sanctioning power, and this entails the need to determine the authorship of the sanctionable action or omission, emphasizing a favorable interpretation of the fundamental rights at stake in order to avoid that the interpretation and application

of the norm leads to a conclusion harmful to those rights, that is, to an improper transfer of personal responsibility.

SEVENTH: On January 16, 2024, a resolution proposal was made proposing that the Director of the Spanish Agency for Data Protection archive the sanctioning procedure opened against OMEGA RESORT S.L., with NIF B35609031, for the alleged infringement of Article 5.1.c) of the GDPR. This resolution proposal, which was notified to OMEGA RESORT in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was received on January 22, 2024, as evidenced by the acknowledgment of receipt in the file.

EIGHTH: Once the aforementioned resolution proposal was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from OMEGA RESORT.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The claiming party stayed at the accommodation owned by OMEGA RESORT on August 25, 2022.

SECOND: It is recorded that the claiming party filed a complaint form on August 30, 2022, stating that on August 25, 2022, when checking in at said establishment, a photocopy of their ID was made.

THIRD: It is recorded that OMEGA RESORT has stated that no photocopy of the identity document was made, but that only the strictly necessary data were collected to comply with Organic Law 4/2015, of March 30, on the protection of citizen security, and Order INT/321/2021, of March 31, which modifies Order INT/1922/2003, of July 3, on registration books and entry reports of travelers in hospitality establishments and other similar ones, which requires the collection of the identity document number, type of document, date of issuance of the document, first surname, second surname, name, sex, date of birth, country of nationality, and date of entry.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary issues

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/9

In the present case, according to the provisions established in Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, given that OMEGA RESORT collects and retains, among others, the following personal data of individuals: name and surname, ID number/NIF, address, phone number, among other processing activities.

OMEGA RESORT carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR.

For its part, Article 5.1.c) of the GDPR regulates the "principles relating to processing."

III

Principles relating to processing

Article 5.1.c) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')"

This article highlights that personal data shall be "adequate, relevant and limited to what is necessary" for which they were collected, so that if the intended objective can be achieved without excessive data processing, that is how it should be done.

In turn, Recital 39 of the GDPR indicates that: "Personal data should only be processed if the purpose of the processing could not reasonably be fulfilled by other means." Therefore, only data that is "adequate, relevant and not excessive in relation to the purpose for which it is obtained or processed" shall be processed.

In the case at hand, the claimant had stayed at an OMEGA RESORT establishment on August 25, 2022. On August 30, 2022, they submitted a complaint form to the Ministry of Tourism of the Government of the Canary Islands, stating that, upon checking in at the establishment, a photocopy of their identification document had allegedly been made.

For its part, OMEGA RESORT has stated in its letter dated July 17, 2023, that it did not make such a photocopy of the claimant's identification document, but only collected the data required by Organic Law 4/2015, of March 30, on the protection of citizen security, and by Order INT/321/2021, of March 31, which amends Order INT/1922/2003, of July 3, on registration books and entry reports of travelers in hospitality establishments and other similar ones, regarding documentary registration obligations. Thus, they state that they only collected the following data from the claimant's identification document:

- ID number
- Type of document
- Date of issue
- First surname, second surname, name
- Gender
- Date of birth
- Country of nationality
- Date of entry

Therefore, it has not been established in this procedure that OMEGA RESORT made a photocopy of the claimant's identification document.

The Constitutional Court (SSTC 131/2003 and 242/2005, among others) has ruled in this regard by indicating that one of the requirements inherent to the right to the presumption of innocence is that the sanction must be based on acts or incriminating evidence of the alleged conduct, and that the burden of proof regarding the commission of the administrative offense and the participation of the accused lies with the acting public administration.

For its part, Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector establishes as one of the principles of the sanctioning power the principle of "Responsibility" and determines in this regard that:

"Only individuals and legal entities, as well as, when a law recognizes their capacity to act, groups of affected individuals, unions, and entities without legal personality and independent or autonomous assets, that are responsible for the same due to intent or negligence may be sanctioned for acts constituting an administrative infraction."

Likewise, it should be taken into account what is established in Article 53.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, which states:

"In addition to the rights provided for in the previous section, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights: (...)

b) To the presumption of non-existence of administrative responsibility until proven otherwise."

Thus, based on the aforementioned paragraphs, no evidence has been found to substantiate the existence of an infraction within the jurisdiction of the Spanish Agency for Data Protection.

Consequently, it is not appropriate to analyze the rest of the allegations presented by OMEGA RESORT, as it has not been possible to verify that a photocopy of the claimant's identification

document was made.

Therefore,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/9

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: To archive the present sanctioning procedure against OMEGA RESORT, S.L., with NIF B35609031.

SECOND: TO NOTIFY this resolution to OMEGA RESORT, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and subsection 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

938-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es